



National Fuel

October 14, 2009

Vincent Troia
1100 Pennsylvania Ave.
Monica, PA 15601

RE: National Fuel Gas Supply Corporation
Encroachment Manual

Dear Mr. Troia:

Enclosed please find a copy of National Fuel Gas Supply Corporation's Pipeline Encroachment Manual and a natural gas pipeline safety brochure. Be advised, prior to beginning any encroachments in the area of our pipelines and facilities we require an Encroachment Agreement.

Also, National Fuel Gas Supply Corporation must be named as an additional insured and the Certificate of Insurance for Commercial General and Umbrella Liability, Automobile Liability and Workers Compensation will require limits of not less than 5 million dollars, depending upon the type of encroachment. I have enclosed a sample Certificate of Insurance that shows exactly how we want the description to read and request that your insurance carrier forward the certificate directly to me.

Should you have any questions after reviewing the enclosed information I can be reached at 1-800-458-0413, Ext. 4559.

Very truly yours,

Guy G. Steg
Land Services Manager
Land Dept.

GGS/dw

Enclosures

**NATIONAL FUEL GAS
SUPPLY CORPORATION**



**PIPELINE
ENCROACHMENT
MANUAL**

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INTRODUCTION

National Fuel Gas Supply Corporation ("NFGSC") is a subsidiary of National Fuel Gas Company. National Fuel Gas Company was incorporated in 1902 and is headquartered in Williamsville, New York. NFGSC transports and stores natural gas for its local distribution area as well as for utilities, pipelines and other companies serving the markets in the northeastern United States. NFGSC owns and operates 2,966 miles of pipeline network that extends from southwestern Pennsylvania to Niagara Falls, New York.

This handbook provides basic information for landowners, contractors, and developers with development plans adjacent to or encroaching on NFGSC rights-of-way. It is intended to minimize the possibility of damage to NFGSC facilities, which will help ensure a safe and reliable pipeline system.

These guidelines will aid in your design of any proposed work that affects NFGSC rights-of-way. Please read the guidelines carefully. Your proposal will be processed more efficiently if all necessary information is provided. All development plans that affect NFGSC rights-of-way must be approved in writing by NFGSC.

These guidelines may not include your particular situation. If you should have any questions, please call the area field foreman or engineer.



A right-of-way agreement is an agreement by which a property owner grants permission to another party to use a portion of his or her land for a specific purpose. NFGSC's original rights-of-way, as well as those acquired today, are granted in return for a one-time consideration, which is paid at the time the agreement is acquired. The right-of-way gives NFGSC the right to construct, operate, and maintain its pipeline and related facilities which are necessary for the transmission, storage, and distribution of natural gas. NFGSC also has the free right of ingress and egress to its rights-of-way.

The right-of-way agreement is a right in the land, and the agreement is recorded in the appropriate public records office. It is a legal document. If the land is sold, the rights and responsibilities under the terms of the agreement pass to the new owner.

The right-of-way agreement generally states the width of the right-of-way. However, if there is no width defined, then the right-of-way is considered a "blanket right of way" and its width is deemed to be as wide as reasonably necessary for NFGSC's requirements, which may be as wide as sixty-six feet (66'). In this case, NFGSC would consider executing an agreement defining the right-of-way width. Each request would be considered on a case-by-case basis.

Our review of any proposed work will focus on the right-of-way area and the lands immediately adjacent to the right-of-way.



SECTION 2

ENCROACHMENT AGREEMENT

An encroachment agreement is required whenever a permanent installation (e.g., utility lines, pipelines, road crossings, above and below ground structures, sheds, swimming pools, trees, berm, shrubs, etc.) or intrusive temporary activity (e.g. construction, logging, mining, blasting, excavating) is approved to encroach into the right-of-way area.

The encroachment agreement must be executed by the landowner or party seeking to encroach and NFGSC prior to the proposed activity or installation. All encroachment agreements covering permanent installations will be recorded in the appropriate public records office. The encroachment agreements covering temporary encroachments will be recorded at the discretion of NFGSC. All encroachment agreements will be tailored to the specific permanent or temporary encroachment and an administrative fee may be required.



It is our desire to keep a clear right-of-way that can be used by our maintenance personnel and one that is clearly visible to our aerial patrol pilot. We must retain the right of free and ready access to the pipeline, cathodic protection, and other facilities along and within rights-of-way across your property in order to properly maintain and operate our facilities in accordance with the United States Department of Transportation regulations.

Under our right-of-way agreement, the landowner may use his land as he sees fit provided it does not interfere with the rights granted to us to maintain and operate our pipeline. For safety purposes, we ask all landowners not to carry out any work on the right-of-way without notifying us and giving us an opportunity to be present. Certain work on the premises unduly interferes with the safety of our pipeline, and we regret that we cannot permit such work. We have summarized these situations below, and we respectfully request the landowner to cooperate with us in the interest of safety for all.

1. No trees shall be planted within the confines of the right-of-way. We consider trees as those plants that grow to an excess of five (5) feet in height at maturity. This would include such species as fir, pine, arborvitae, hemlock, maple, rhododendron, birch, fruit trees, willow, etc. Such trees inhibit access to the pipeline and their roots can damage the pipeline. Shrubs or bushes less than five (5) feet in height may be located on NFGSC's right-of-way provided they are not planted within ten (10) feet of the pipeline, or between the pipelines in a multiple line situation. In either of these cases, NFGSC will be glad to locate its pipeline for you. Shrubs include such species as English and dwarf yews, holly, heather, dwarf rhododendron, azalea, barberry, etc. No permanent plantings of any type within ten (10) feet of the pipeline. Please note under the terms of the right-of-way agreement, NFGSC still reserves the right to remove any trees, shrubs or other obstructions, without compensation, that interfere with the operation and maintenance of its facilities.
2. No earth shall be removed from the surface of the right-of-way, for such removal can expose the pipeline to damage. Small amounts of fill may be added with NFGSC's approval, provided it is clean fill, free of rocks, stumps and debris. No water impoundment is allowed within NFGSC's right-of-way.
3. No structures shall be located on the right-of-way. This includes houses, utility sheds, garages, swimming pools, house trailers, wells etc. It is not possible to maintain the pipeline or reach it promptly in times of service interruption with such structures present. Fences, though permanent structures, can be located across the right-of-way if provisions are made for NFGSC crews and equipment to gain access through them by proper placement of suitable gates.
4. Underground utilities crossing NFGSC's pipeline shall be installed below the pipeline, with a minimum of 12 inches clearance so as not to interfere with the pipeline. Utilities include sewers, drain lines, water pipes, gas pipes, underground electric or telephone cables, etc. These facilities are not to be placed parallel to our pipeline within

NFGSC's right-of-way. Septic systems shall not be built on NFGSC's right-of-way. However, a solid non-leaching septic line may be placed across the right-of-way provided it adheres to the 12-inch clearance previously stated. Sandbag padding is to be installed between NFGSC's pipeline(s) and foreign crossing.

5. No heavy equipment is to be moved across the right-of-way prior to notifying the area foreman.

Construction plans that affect NFGSC's rights-of-way, as outlined in paragraph 4 and 5 above, should be submitted for review and approval before any construction starts. This will save both parties from being involved in any possible misunderstanding and will save you time and money. Please be assured NFGSC stands ready to cooperate with you in any manner possible.

The most helpful contact you have in NFGSC is the area foreman who is responsible for the Company's facilities on your property. Call them if you have a problem or any questions. Their office is open from 8:00 AM to 4:30 PM on normal workdays.

NFGSC understands its responsibilities and is attempting to exercise its right-of-way rights with a minimum of inconvenience to you. Your safety and the safety of the public are our first consideration, so we are asking for your cooperation.



The following list of construction requirements must be met when working near NFGSC facilities. Questions related to these requirements should be directed to (716) 857-7986 in New York and (814) 871-8656 in Pennsylvania.

1. NFGSC's standard right-of-way width is 50 feet, unless otherwise stipulated.
2. NFGSC must be notified in advance through Dig Safely New York. One Call in Pennsylvania (in New York at least 2 full working days, in Pennsylvania at least 3 full working days – see p.13 for phone numbers) for any construction, excavation, demolition, blasting, pile driving, or vibratory equipment operation near NFGSC facilities. NFGSC will have personnel stand-by while these activities take place near our facilities.
3. Maintain a minimum distance of 25 feet between NFGSC pipelines, cathodic protection, other facilities, and any permanent structure such as a building or house.
4. Maintain a minimum distance of 200 feet between NFGSC gas wells and any permanent structure such as a building or house.
5. No "temporary" storage sheds will be allowed within 25 feet of NFGSC pipelines.
6. No excavations, change of grade, or water impoundment within the rights-of-way are to be made without the express written consent of NFGSC.
7. No trees or bushes that exceed 5 feet in height will be allowed within the 50-foot pipeline right-of-way. Smaller bushes that do not exceed 5 feet in height will be allowed within 10 feet of the pipeline. No permanent plantings of any type within 10 feet of the pipeline.
8. **The right-of-way may be crossed, under certain conditions, by roads, pipelines, railroads, streets, and utility lines. However, these facilities are not to be placed parallel to, along or within NFGSC's rights-of-way. To accommodate such facilities across the pipeline or to accommodate any allowable change of grade or excavation, NFGSC, in many instances, will be required by federal regulations and company requirements to alter its pipeline facilities. NFGSC will require that the party seeking to encroach assume the financial obligation of any such required alteration or adjustment.**
9. Maintain a minimum of 60 inches of cover over any NFGSC pipeline at the crest of any road, 42 inches at a driveway, and 36 inches in a drainage ditch.
10. No heavy equipment is to be moved across the right-of-way prior to notifying the area foreman and obtaining his approval.

11. For property development, three copies/sets of surveyor's plats of the subdivision or project, along with profiles based on actual pipeline elevation of any streets that will cross any NFGSC pipelines must be furnished. From this and NFGSC's records, NFGSC will determine what alterations will be required, if any, and will then furnish the landowner and/or developer an estimate of costs and a drawing showing the necessary pipeline alterations.
12. Paving may be permitted within NFGSC rights-of-way. However, it must be kept to a minimum. Each paving proposal will be evaluated on its own merits. The landowner and/or developer will be required to pay for the installation of additional test leads and ground to soil test holes along the paved area to allow NFGSC to monitor the integrity of its cathodic protection. Repairs to paved area will be at landowner and/or developer's expense.
13. In some cases, NFGSC may require a grass or gravel island be left over the pipeline to allow a path for gas to vent in case of leakage.
14. Underground utilities crossing any NFGSC pipeline must be installed below the pipeline with a minimum of 12 inches of vertical clearance so as not to interfere with the pipeline. Utilities include sewers, drain lines, water pipes, gas pipes, underground electric or telephone cables, etc. These facilities are not to be placed parallel to any NFGSC pipeline within NFGSC's right-of-way. Septic systems shall not be built on NFGSC's right-of-way. However, a solid non-leaching septic line may be placed across the rights-of-way provided it adheres to the 12 inches of clearance previously stated. Sandbag padding is to be installed between NFGSC's pipeline and any underground utility crossing.
15. Where possible, perforated agricultural field drain tile line crossings are to be installed perpendicular to and with a minimum of 12 inches of vertical clearance to any NFGSC pipeline.
16. Any buried metallic structure within any NFGSC right-of-way requires the installation of an interference test station. Proper notification needs to be made to NFGSC Corrosion Engineering and Operations Departments to review the proposed project to see how this construction could adversely affect the cathodic protection of NFGSC facilities.
17. Grading over any NFGSC pipeline requires a minimum of 36 inches of cover as verified by our NFGSC inspector. Grading equipment with ripping blades shall not be permitted within NFGSC rights-of-way.
18. No vibrating equipment is permitted within 25 feet of any NFGSC pipeline without submitting a plan of procedures for review and approval by NFGSC's Engineering Department.

19. Blasting near pipelines is at the contractor's risk. NFGSC must be notified a minimum of two weeks in advance if any blasting is to occur within 200 feet of our pipeline. No blasting is permitted within 200 feet of any NFGSC pipeline without submitting a plan of procedures in accordance with NFGSC's Blasting Specifications. See Section 6 of this Manual.
20. Vibrating compactors must be monitored by an approved vibration consultant when operating within 25 feet of any NFGSC pipeline.
21. No excavating within 25 feet of any NFGSC pipeline with heavy equipment. Any excavation within 25 feet shall be done with a small backhoe.
22. If any NFGSC pipeline is to be exposed:
 - a) Any exposed unsupported pipeline sections must be supported by nylon slings and suspended from steel I-beams which are placed across the top of the ditch. The maximum unsupported length is 15 feet.
 - b) NFGSC will stand by while the pipeline is exposed and shall be notified to inspect the pipeline prior to backfilling operations. Any coating damage will be repaired by NFGSC at the contractor's expense prior to backfilling the ditch.
 - c) Select fill is required for the first foot of backfill over the pipeline.
 - d) Coal cinders or coal ashes shall not be used as backfill material.
23. Maintain a minimum of 25 feet between any NFGSC pipeline and the base of any berm, for example, around a pond.
24. The contractor shall comply with the instructions of NFGSC personnel regarding the procedures to be followed while working within the restricted zone.



SECTION 5

LOGGING AND TIMBER OPERATIONS

All logging activities which occur within the confines of NFGSC rights-of-way must be approved prior to the commencement of the activity. In addition, an encroachment agreement covering the installation of land bridges, temporary erosion controls, restoration and final inspection of the site, shall be executed by the responsible party before beginning logging activity. A bond may be required to be posted by the logging company to insure the restoration of the right-of-way area.

The NFGSC representative overseeing the right-of-way area must be contacted at least 3 working days prior to the proposed activity. A NFGSC representative will meet on site to discuss the proposed activity. No skidding along or within the right-of-way area will be allowed. No staging areas or stockpile areas will be allowed within the right-of-way. Perpendicular crossings of NFGSC rights-of-way will be permitted as long as adequate measures to protect the pipeline are put in place. The logging company will identify their preferred crossing location. A NFGSC representative will determine the requirement for mats and logging bridges constructed of wood, slash or gravel over any NFGSC pipeline. Any potential for erosion and temporary erosion control devices within the right-of-way area will be addressed prior to the commencement of the logging activity.

Should the work be suspended for more than 4 weeks, all ruts on the right-of-way area shall be filled and graded and the area seeded with a temporary cover to prevent erosion.

Upon completion of the logging activities, all ruts shall be filled and graded. Any permanent erosion control devices removed or destroyed during the logging activity shall be restored. Temporary erosion control devices are to be installed by the logging company to ensure the proper re-vegetation of the right-of-way area. All disturbed areas within the right-of-way shall be seeded and mulched with a conservation blend or a seed approved by NFGSC and the Soil Conservation Agent or the State Forester. At least 3 days prior to the completion and restoration of the right-of-way area, the logging company shall meet with a NFGSC representative on site to determine if the area has been satisfactorily restored and the site stabilized.



When blasting within 200 feet of any NFGSC pipeline, the following will be required:

1. All parties associated with the blasting operations will comply with Title 25, Chapter 211 of the Pennsylvania Code, and Section 760 of the General Business Law of New York State and all other applicable federal, state, and local regulations.
2. Contractors will submit a written blasting plan to our company representative at least two (2) weeks before blasting commences. NFGSC Engineering Department will review the parameters of the blasting plan based on the current American Gas Association (AGA) published data concerning blasting effects on pipelines. The blasting plan should include the following information at a minimum:
 - ◆ Explosive type
 - ◆ Delay types and intervals
 - ◆ Delay pattern
 - ◆ Maximum shot hole depth and diameter
 - ◆ Hole spacing
 - ◆ Drilling pattern - show plan view and profile in relation to NFGSC facilities
 - ◆ Maximum charge per hole
 - ◆ Maximum charge per delay
 - ◆ Type of protective blasting mat used, if any and method of placement

No more than one charge will be fired during each delay period.

3. Prior to actual blasting, all non-explosive means must be explored (i.e., S-Mite - a silent non-explosive).
4. The drilling pattern and initiation procedure must provide the greatest relief possible in a direction away from any NFGSC pipeline and must minimize vibration and ground movement. The use of stress relieving trenches may be required.
5. All blasting operations will be conducted by experienced, trained, and state licensed personnel each of whom shall be in good standing with the licensing entities. Documentation of licensed blasters will be provided to NFGSC authorized representative prior to any blasting.
6. All blasting will be done with the NFGSC authorized representative present.
7. The contractor will supply a seismograph and qualified operator, jointly acceptable by both the contractor and NFGSC, at contractor's expense. Seismograph readings taken over NFGSC's affected pipeline(s) and facilities will be recorded for each blast. Results will be provided to NFGSC's authorized representative after each blast.

8. A peak particle velocity of 2 inches per second shall not be exceeded at any NFGSC facility. Peak particle velocities shall be recorded in the longitudinal, transverse, and vertical directions.
9. NFGSC may elect to hire its own blasting consultant. The expense for same will be borne by contractor.
10. Any deviation from the guidelines of the blasting plan reviewed by NFGSC will require prior written approval from NFGSC's Engineering Department. In the event the plan's peak particle velocities are exceeded, the contractor will be liable to pay the full cost of inspecting NFGSC's facilities and any repairs and replacements resulting from such occurrence, as well as any other costs directly resulting from such occurrence.

Compliance with these standards does not suggest or imply that the contractor, its contractors, blasters, consultants or any other associated party is relieved of any responsibility or liability in the event any of NFGSC's facilities are damaged in any way before, during, or after blasting operations. NFGSC will hold all parties responsible for costs incurred for any breach of pipeline or facility integrity.

Additionally, the contractor, its contractors, blasters, consultants and any other associated party will indemnify, defend, and hold harmless NFGSC against any and all losses, claims, and actions of any kind arising from or incident to any blasting operations. Further, contractor, its contractors, blasters, consultants and other associated parties hereby waive any and all claims against NFGSC and release NFGSC from any and all liability related to the operation of its pipelines and facilities in the blasting area.

NATIONAL FUEL GAS BLASTING INFORMATION REQUEST

Date: _____, 20 ____

Blasting Contractor: _____

Contact Name: _____

Contracted by: _____

Phone Number: _____

Date of Blasting: _____ Month: _____ Day: _____ Year: 20 ____

Blasting Location: _____

Pipeline or Station Name: _____

Closest Location of National Fuel Gas Facility: _____

EXPLOSIVE SECTION

Type of Explosives: _____

Equivalent Energy Release: _____

Specific Energy Release: _____

Maximum Charge / Hole (lbs.): _____

Charge Weight / Delay (lbs.): _____ Charge Delay (mS): _____

Charge Pattern: *(Draw sketch on reverse side. Include all depths and measurements and delay patterns relative to the piping involved and each charge.)*

Depth of Charge (ft.): _____

Diameter of Charge (in.): _____

Type of Rock to Be Blasted: _____

Mass Density of Rock (lbs. / cu. ft.): _____

Expected Peak Soil Particle Velocity *(at National Fuel Gas facility in inches per second):*

Were non-explosive means explored (yes / no)? _____

Completed By: _____

TO BE COMPLETED BY NATIONAL FUEL GAS SUPPLY CORPORATION

Received by: _____

Date: _____

Approved by: _____

Date: _____

Comments: _____



To initiate a mining operation, first confirm in writing the arrangements made during a meeting with NFGSC's representative. The following are NFGSC's minimum requirements:

1. If the top edge of slope of the high wall is to remain less than 30 feet in height, then no excavation shall be allowed within 25 feet of the pipeline(s).
2. If the top edge of slope of the high wall is greater than 30 feet in height, then the top edge of the slope will be maintained 25 feet plus 1/2 the height of the high wall from the pipeline. The stripping operation must be completed and overburden replaced on one side of the pipeline(s) before stripping begins on the opposite side.
3. Blasting operations conducted within 200 feet of any NFGSC facilities must comply with Blasting Specifications, Section 6 of this Manual.
4. There shall be no auguring from the area being left to support and protect the pipeline and right-of-way area. Rights-of-way crossings for water drainage and vehicle haul roads will be designed, constructed, and placed as directed by NFGSC's area representative. There shall be no overburden placed within any NFGSC rights-of-way except for haul roads as directed above. These crossings shall be removed by the contractor/owner when no longer necessary. The rights-of-way are to be returned to their original condition.
5. The use of these standards by the mining contractor's personnel or assignees does not give, imply, or suggest that the contractor/owner is relieved of any responsibility in the event that the gas service is interrupted or the pipeline damaged in any manner before, during, or after the mining, blasting, or stripping operations. NFGSC will hold the landowner and mine operator as permitted by the PA DEP or NY DEC responsible for all costs incurred for any breach of integrity of the pipeline(s) attributable to the mining operations.

**Definitions:****1. Power Lines:**

Power lines are defined as conductors for transmitting a supply of energy, either direct current (DC) or alternating current (AC), at any voltage, supplying power of more than 150 watts.

2. Communication Lines:

Communication lines are defined as conductors for telephone, telegraph, signal, control, telemeter and television antenna systems. These circuits may be private or public and operate at not exceeding 400 volts to ground or 750 volts between any two points of the circuit. The transmitted power on these lines does not exceed 150 watts.

Buried power or communication lines shall cross the pipelines at right angles and should be located so they subject the pipeline to the least practicable disturbance.

All buried conductors, whether in conduit or direct burial cable, are to be installed in accordance with requirements of the National Electric Safety Code (National Bureau of Standards Handbook 81) and the National Electrical Code (NFPA No. 70: ANSI C1 - latest editions). The latest editions of these codes are to apply, the appropriate sections being minimum requirements.

All power and communications lines crossing the Supply Corporation right of way shall be laid with at least twelve (12) inches separation between the cable/conductors and the pipeline, and are to be protected by a non-metallic conduit. Conduits encasing power lines exceeding 600 volts shall be covered with a minimum of three (3) inches of concrete. Conduits and concrete shall extend a minimum of ten (10) feet each side of the pipeline crossing.

In addition to the above, all power and communication lines crossing the Supply right of way shall include marking tape laid above the protective conduit and covering that indicates the presence of the buried electrical or communications line.

Any crossing of NFGSC's right-of-way is to be approved only after an encroachment agreement containing an indemnification clause in favor of NFGSC has been signed by both parties.

NFGSC personnel are to be present during installation of the conductor and any associated conduit. All buried cable crossings shall be permanently marked with signs showing the location of the cable and/or conduit. Markers or signs shall be placed above ground on both sides of the pipeline at the point directly above the crossing line(s) and just inside the 10 (ten) foot buffer zone containing the conduit casing.



SECTION 9

ONE-CALL SYSTEM - IT'S THE LAW

The One-Call System is a communication system that has been established to provide one telephone number for excavating contractors and the general public to call for notification of their intent to use equipment for excavating, blasting, tunneling, or other similar work.

Excavators and contractors are required to notify facility owners through the One-Call System prior to excavation or demolition work. Definition of excavation: to drill, blast, auger, bore, grade or trench. **Failure to notify is a direct violation of the law and penalties can be enforced.**

The One-Call Systems within our Division are working to promote public safety and eliminate service interruptions to all utilities.

NEW YORK

Dig Safely New York
811 or 1-800-962-7962
James Street, Syracuse, NY 13206
Request Time: 2 working days

PENNSYLVANIA

Pennsylvania One-Call System, Inc.
811 or 1-800-242-1776
Borland Complex, 925 Irwin Run Road, West Mifflin, PA 15122-1078
Coverage: Statewide
Request Time:

1. For excavation or demolition work, not less than 3 nor more than 10 working days prior notice.
2. Designers are required to request information not less than 10 nor more than 90 working days before the final design. Design should not come within 18 inches of existing facility. Plans must show the serial number and either the 811 or 1-800-242-1776 telephone number.

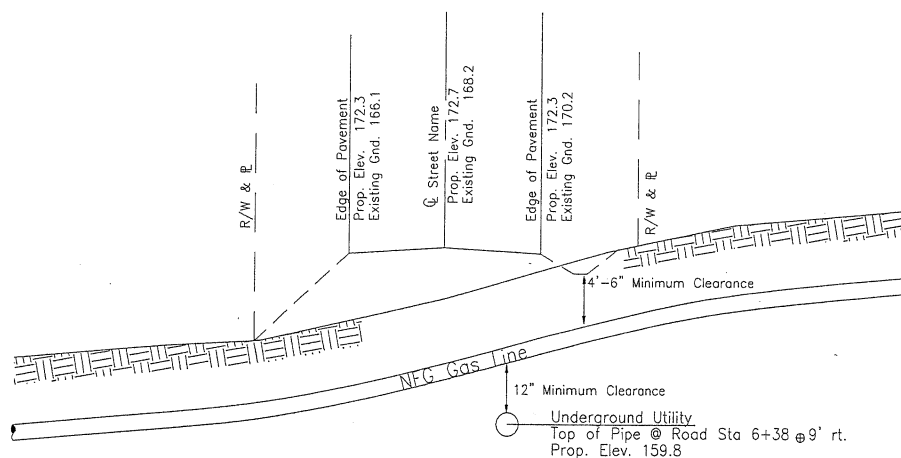
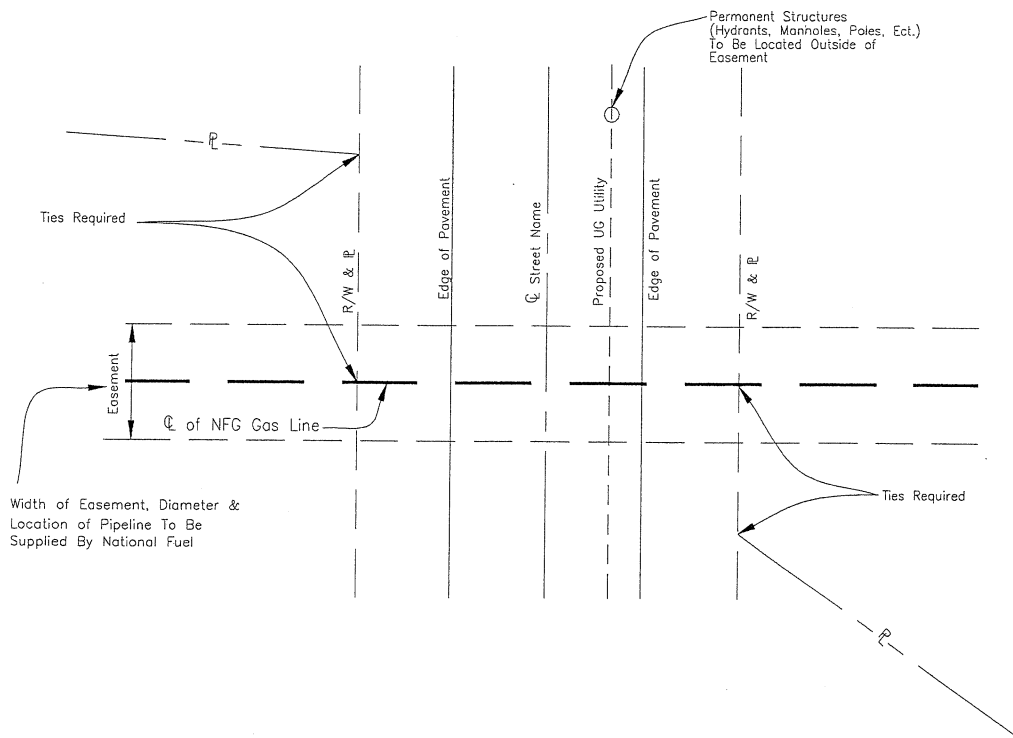


SECTION 10

Data Required for Project Review

All requests for review of projects involving potential encroachment of NFGSC rights-of-way must include the following information:

1. A cover letter describing in detail the proposed project. It must include the name, address, and telephone number of the owner/developer.
2. Three (3) complete sets of drawings of the project including the following information:
 - a) A plan of the project drawn to scale, which shows location of the project. Where changes in grade are proposed in the pipeline right-of-way, existing and proposed elevations must be shown. Also, the existing pipeline elevation must be shown. You may contact our local office to coordinate excavations to determine actual pipeline elevations.
 - b) A ground profile where changes in grade are to be made in the right-of-way for things such as road crossings, excavations, fill, etc. A typical profile drawing can be found on the following page of this handbook. The drawing must be done by a registered land surveyor.
 - c) If hauling or traveling across the right-of-way is to be part of the project, vehicle information is to be supplied to NFGSC. This is to include vehicle type, number of axles, and gross vehicle weight. NFGSC will review this information and determine if special modifications need to be made to the depth of cover on the pipeline.
3. Following receipt of the proposed project by NFGSC, please allow up to four weeks for project review. This time frame will depend on project complexity.



Notes:

1. Depth of pipe is to be determined by National Fuel at Contractor Expense.
2. The Developer must furnish National Fuel with profiles of any proposed road crossing.
3. Crossings must be made as near to a 90° angle as practicable.
4. Sketch must be prepared by a Registered Land Surveyor.

National Fuel
SUPPLY CORPORATION
ENGINEERING DEPT.
SURVEYING SECTION
1100 STATE STREET, ERIE, PA 16512
814-871-8000

TYPICAL INFORMATION & DRAWING
FOR
ROAD CROSSING
OF
NFG HIGH PRESSURE GAS PIPELINE

DRAWN BY:	FILE NAME:
M. Tarr	K: /Library/roadxing.dwg
CHECKED BY:	SCALE:
M. Wallace	1"=60'
APPROVED BY:	DATE:
	11-5-98



The procedures for relocating one of NFGSC's facilities will be the following:

1. NFGSC receives notification from the owner/developer requesting facility relocation.
2. The owner/developer provides NFGSC with three sets of plans for the proposed project including their desired location for the relocated pipeline. The plans must indicate the location of the existing pipeline. For the location and depth of the existing pipeline, contact the area office closest to the proposed project. Also, the plans must be of sufficient detail for NFGSC to prepare a cost estimate.
3. NFGSC will conduct an on-site inspection to determine the feasibility of the proposed relocation.
4. If NFGSC determines that the relocation is not feasible, the owner/developer will be notified.
5. If relocation is determined to be not feasible, or impractical, a possible alternative could be to inspect and rehabilitate the existing pipe and leave it in place. This is accomplished by uncovering the line and inspecting the entire surface for defects and imperfections which affect the integrity of the pipe. These defects would be removed or repaired and the pipeline would then be coated, cathodically protected, and reburied. This would be at the total discretion of NFGSC and would follow the same procedure as outlined below.
6. If relocation or rehabilitation is found to be feasible, the owner/developer must request a cost estimate.
7. A cost estimate will be prepared and forwarded to the Land Department. They will then inform the owner/developer of the expected cost.
8. Upon owner acceptance, the Land Department will prepare the proper agreement and collect the corresponding fees.
9. Prior to the commencement of work by NFGSC, the owner/developer shall pay NFGSC the total estimated cost by certified check. Upon completion of the relocation, should the advanced payment be insufficient to pay for the actual costs and expenses of the work, the owner/developer shall pay the additional sum that was necessary to complete the work. If the advanced payment exceeded the total costs and expenses to do the work, the owner/ developer will be reimbursed for the difference.



SECTION 12

NATIONAL FUEL GAS Supply Corporation Locations

The following is a list of area office locations. The location numbers in bold correspond to the location numbers on the map on the last page of this manual.

New York Field Locations

- 1** Beech Hill Field
1161 Peet Road
Wellsville, NY 14895
Phone: 716-593-1665
- 2** Porterville Field
350 Hemstreet Road
East Aurora, NY 14052
Phone: 716-652-5220
- 3** Orchard Park Servicenter
5955 New Taylor Road
Orchard Park, NY 14127
Phone: 716-667-5528
- 4** Nashville Field
11413 Allegany Road
Forestville, NY 14062
Phone: 716-934-4032
- 5** Tuscarora Field
1449 County Road 100
Addison, NY 14801
Phone: 607-359-3671
- 6** Zoar Storage
14851 Konert Road
Collins, NY 14034
Phone: 716-532-4441
- 8** Independence Field
2210 County Road 22
Andover, NY 14806
Phone: 607-478-8784

New York Office Locations

- 7** Land Department
6363 Main St.
Williamsville, NY 14221
Phone: 716-857-7986
- 7** Engineering Department
6363 Main St.
Williamsville, NY 14221
Phone: 716-857-7102
- 19** Corrosion Department
Mineral Springs Works
365 Mineral Springs Road
Buffalo, NY 14210
Phone: 716-827-2211

Pennsylvania Field Locations

- 9** Brookville Field
51 Zents Blvd.
Brookville, PA 15825
Phone: 814-849-6150

- 10** Hebron Field
896 State Rt 44N
Coudersport, PA 16915
Phone: 814-274-8156

- 11** Henderson Field
241 Henderson Station Rd.
Stoneboro, PA 16153
Phone: 814-432-2618

- 12** Kane Field
5405 Highland Rd.
Kane, PA 16735
Phone: 814-837-9585

- 13** Parker Field
3013 Pump Station Lane
East Brady, PA 16028
Phone: 724-445-3197

- 14** Roystone Field
1878 Rt. 6
Sheffield, PA 16347
Phone: 814-968-3245

- 15** St. Marys Field/Elk Servicenter
2093 State St.
St. Marys, PA 15857
Phone: 814-781-7041

- 16** Summit Field
520 Robison Road West
Erie, PA 16509
Phone: 814-864-1111

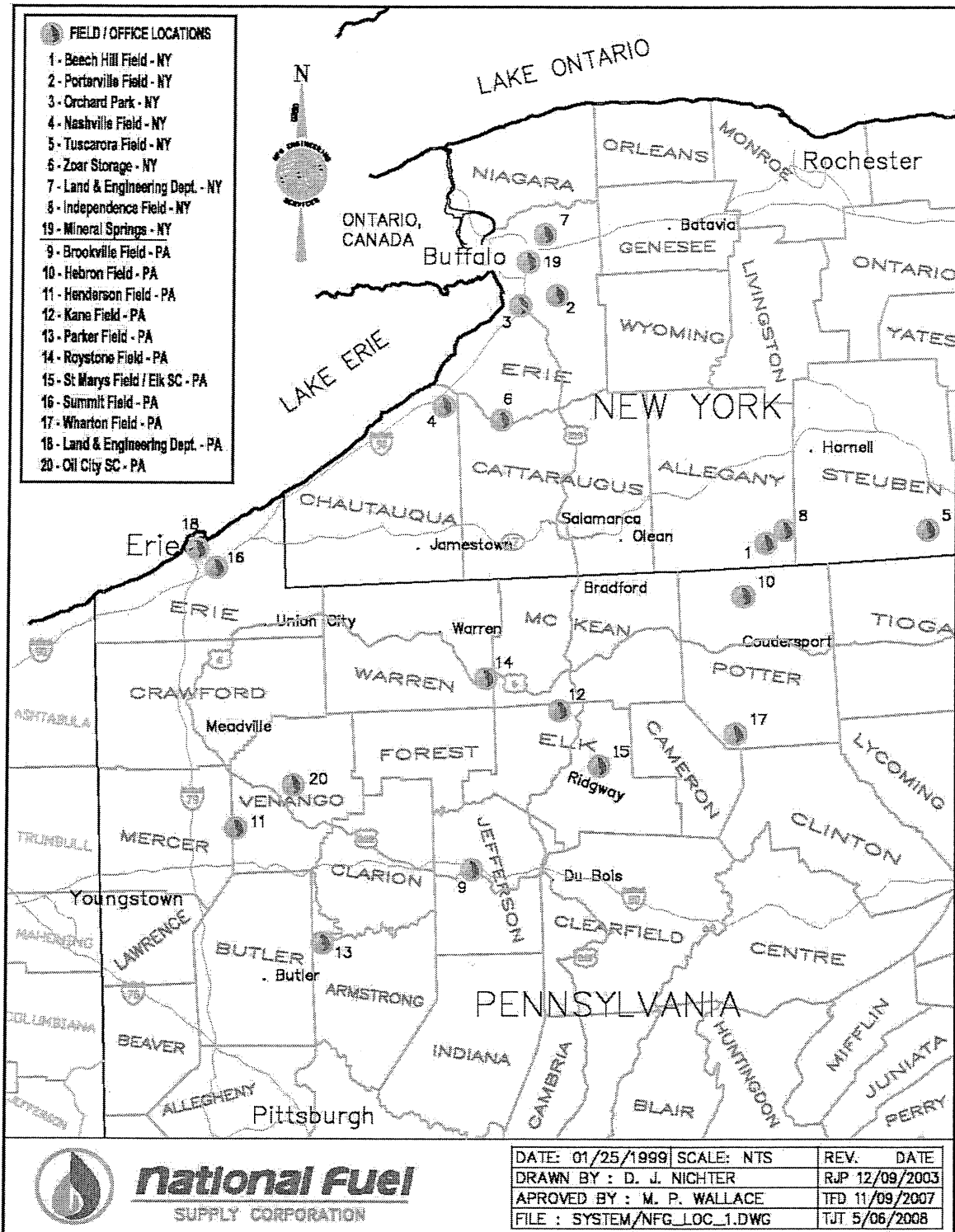
- 17** Wharton Field
29 National Fuel Gas Rd.
Austin, PA 16720
Phone: 814-647-8433

Pennsylvania Office Locations

- 18** Land Department
1100 State St., 3rd Floor
Erie, PA 16501
Phone: 814-871-8654

- 18** Engineering Department
1100 State St., 2nd Floor
Erie, PA 16501
Phone: 814-871-8676

- 20** Corrosion Department
Oil City Servicenter
1 Relief Street
Oil City, PA. 16301
Phone: 814-678-4852



ACORDTM CERTIFICATE OF LIABILITY INSURANCE		DATE (MM/DD/YYYY) 02/12/2008												
PRODUCER Contractor Insurance Company 5501 Pacific Avenue Transfer, NY 14501	814-871-8248	THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW.												
INSURED ABC Contracting Company 231 Broad Street Harley, NY 14232		<table border="1" style="width:100%; border-collapse: collapse;"> <tr> <th style="text-align: left;">INSURERS AFFORDING COVERAGE</th> <th style="text-align: left;">NAIC #</th> </tr> <tr> <td>INSURER A: ABC Insurance Company</td> <td>4321</td> </tr> <tr> <td>INSURER B: DEF Insurance Company</td> <td>5122</td> </tr> <tr> <td>INSURER C: GHI Insurance Company</td> <td>2322</td> </tr> <tr> <td>INSURER D: JKL Insurance Company</td> <td>3447</td> </tr> <tr> <td>INSURER E:</td> <td></td> </tr> </table>	INSURERS AFFORDING COVERAGE	NAIC #	INSURER A: ABC Insurance Company	4321	INSURER B: DEF Insurance Company	5122	INSURER C: GHI Insurance Company	2322	INSURER D: JKL Insurance Company	3447	INSURER E:	
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COVERAGES

THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. AGGREGATE LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.							
INSR	ADD'L LTR	TYPE OF INSURANCE	POLICY NUMBER	POLICY EFFECTIVE DATE (MM/DD/YY)	POLICY EXPIRATION DATE (MM/DD/YY)	LIMITS	
A		GENERAL LIABILITY	XXX-XXX-XXX	1/1/09	1/1/10	EACH OCCURRENCE	\$ 1,000,000
		☒ COMMERCIAL GENERAL LIABILITY				DAMAGE TO RENTED PREMISES (Ea occurrence)	\$ 500,000
		☐ CLAIMS MADE ☒ OCCUR				MED EXP (Any one person)	\$ 10,000
						PERSONAL & ADV INJURY	\$ 1,000,000
						GENERAL AGGREGATE	\$ 2,000,000
						PRODUCTS - COMP/OP AGG	\$ 1,000,000
Sample							
B		AUTOMOBILE LIABILITY	XXX-XXX-XXX	1/1/09	1/1/10	COMBINED SINGLE LIMIT (Ea accident)	\$ 1,000,000
		☒ ANY AUTO				BODILY INJURY (Per person)	\$
		☐ ALL OWNED AUTOS				BODILY INJURY (Per accident)	\$
		☐ SCHEDULED AUTOS				PROPERTY DAMAGE (Per accident)	\$
		☐ HIRED AUTOS					
☐ NON-OWNED AUTOS							
Sample							
C		GARAGE LIABILITY	XXX-XXX-XXX	1/1/09	1/1/10	AUTO ONLY - EA ACCIDENT	\$
		☐ ANY AUTO				OTHER THAN AUTO ONLY: EA ACC	\$
						AGG	\$
							\$
							\$
Sample							
D		EXCESS/UMBRELLA LIABILITY	XXX-XXX-XXX	1/1/09	1/1/10	EACH OCCURRENCE	\$ 4,000,000
		☒ OCCUR ☐ CLAIMS MADE				AGGREGATE	\$
		☐ DEDUCTIBLE					\$
		☐ RETENTION \$					\$
							\$
Sample							
D		WORKERS COMPENSATION AND EMPLOYERS' LIABILITY	XXX-XXX-XXX	1/1/09	1/1/10	☒ WC STATUTORY LIMITS ☐ OTHER	
		ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED?				E.L. EACH ACCIDENT	\$ 100,000
		If yes, describe under SPECIAL PROVISIONS below				E.L. DISEASE - EA EMPLOYEE	\$ 100,000
						E.L. DISEASE - POLICY LIMIT	\$ 500,000
Sample							
OTHER							

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES / EXCLUSIONS ADDED BY ENDORSEMENT / SPECIAL PROVISIONS

The certificate holder is named as an additional insured under general, auto, and excess liability policies including ongoing/current and completed operations. Waiver of subrogation has been issued in favor of the certificate holder for the above policies. The insurance coverage herein by the insured is primary and non-contributory.

CERTIFICATE HOLDER

National Fuel, its Affiliates and Subsidiaries P. O. Box 2081, 1100 State Street Erie, PA 16512 Attn: Risk Management Dept. (814) 871-8543 (fax)	CANCELLATION SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE, THE INSURER WILL ENDEAVOR TO MAIL <u>30</u> DAYS WRITTEN NOTICE TO THE CERTIFICATE HOLDER NAMED TO THE LEFT, BUT FAILURE TO DO SO SHALL IMPOSE NO OBLIGATION OR LIABILITY OF ANY KIND UPON THE INSURER, ITS AGENTS OR REPRESENTATIVES. AUTHORIZED REPRESENTATIVE
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IMPORTANT

If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

DISCLAIMER

The Certificate of Insurance on the reverse side of this form does not constitute a contract between the issuing insurer(s), authorized representative or producer, and the certificate holder, nor does it affirmatively or negatively amend, extend or alter the coverage afforded by the policies listed thereon.